

	24-1399944	(Defendant) on the complaint of plaintiff Jorge A. Zamora (Plaintiff). For the reasons set forth below the motion for summary judgment is GRANTED. <u>Timeliness</u>: The court rejects Plaintiff's argument that the motion is untimely. A motion for summary judgment must be "heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (<i>Code of Civ. Proc. § 473, subd. (a)(3)</i>.) The 30-day cut-off is measured from the trial date in effect when the summary judgment motion is made. Thus, a continuance of the initial trial date "reopens" the time for such motions. (<i>Green v. Bristol Myers Co.</i> (1988) 206 Cal.App.3d 604, 609; <i>Soderberg v. McKinney</i> (1996) 44 Cal.App.4th 1760, 1765, fn. 4.) Although Defendant's motion was filed three days before the then-scheduled trial date, the trial date was continued several times and ultimately taken off calendar. On March 4, 2026, Defendant re-noticed the motion for summary judgment/adjudication to July 30, 2026. (ROA 132, 137.) There being no trial date, the motion is timely. <u>Song Beverly Act claims</u> (1st through 4th causes of action): The Song Beverly Consumer Warranty Act, <i>Civ. Code § 1790 et. seq.</i>, does not apply to vehicles purchased or leased outside of California. (<i>Cummins, Inc. v. Superior Court</i> (2005) 36 Cal.4th 478, 487-90; <i>Davis v. Newmar Corp.</i> (2006) 136 Cal.App.4th 275, 278.) Defendant produced undisputed evidence Plaintiff purchased the subject vehicle in Texas, registered the vehicle in Texas and presented the vehicle for repair in Texas. (Defendant's Separate Statement of Undisputed Material Facts 1-7.) Defendants met its initial burden to show that Plaintiff cannot establish his causes of action under the Song Beverly Act. Plaintiff failed to meet his shifted burden showing a triable issue of fact. The motion is therefore GRANTED as to these claims. <u>Magnuson-Moss claim</u> (5th cause of action): The failure to state a warranty claim under state law constitutes the failure to state a claim under Magnuson-Moss Warranty Act, <i>15 U.S. § 2301 et. seq.</i> (<i>Daugherty v. American Honda Motor Co., Inc.</i> (2006) 144 Cal.App.4th 824, 832-833; <i>West v. Rheem Manufacturing Company</i> (C.D. Cal. 2025) 765 F.Supp.3d 976, 990.) This claim fails because Plaintiff's Song Beverly Act claims fail. The motion is therefore GRANTED as to this claim. <i>Counsel for Defendant shall provide notice of this ruling.</i>
14.	Hammouri v. Ford Motor Company 23-1335621	The "Motion for Summary Judgment" filed on 6/23/25 by Defendant Ford Motor Company ("Ford") is DENIED. The hearing on the Motion was continued pursuant to a stipulation, and then upon an <i>ex parte</i> application by Plaintiff Nahed Hammouri ("Plaintiff"). It was then continued as both sides failed to e-file the unredacted versions of their papers. Yet despite the Court's 7/6/26 Order specifically directing both sides to promptly e-file [conditionally

under seal] the unredacted materials, neither side complied. The parties are reminded that all materials submitted must be e-filed; merely "lodging" unredacted versions does not suffice. (That also applies to Ford's Motion to Seal filed on 6/26/26.)

On the merits, this Motion is effectively a motion for summary judgment only. Although Ford's notice alternatively requests summary adjudication on specific issues, the Separate Statement (ROA 90) fails to address them. Ford's belated attempt to amend its Separate Statement, submitted after Plaintiff's Opposition had been filed, is untimely. Plaintiff's Objection thereto (ROA 198) is **SUSTAINED**.

Ford has failed to establish that summary judgment is warranted here. Plaintiff's First Cause of Action asserts a claim under *Civil Code* §1793.2(d). Ford asserts that it fails as a matter of law because Plaintiff only presented the vehicle for service once before filing this action. (UF 2, 5.) The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle. (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208; *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 799.)

It is undisputed that Plaintiff presented the vehicle on 6/7/23. (UF 2.) He then filed suit on 7/11/23. (UF 3.) But Plaintiff claims to have also attempted to obtain service for the same defect a month or so prior to 6/7/23. (AF 7.) He asserts that the dealer's representative at that time refused to assess the vehicle to evaluate Plaintiff's claimed concerns without a significant monetary charge, even though the vehicle was still under warranty. (AF 7.) Ford argues that this claim is not credible. But on a motion for summary judgment, the court may not make credibility determinations, or weigh the evidence. (*McCabe v. American Honda Motor Co.* (2002) 100 Cal.App.4th 1111, 1119.) The opposing party's papers are to be liberally construed. (*Comm. to Save Beverly Highland Homes Ass'n v. Beverly Highland* (2001) 92 Cal.App.4th 1247, 1260.) There is thus a triable issue of fact as to what occurred.

In addition, the statutory scheme at issue here is "manifestly a remedial measure, intended for the protection of the consumer" which "should be given a construction calculated to bring its benefits into action." (*Niedermeier v. FCA US LLC* (2024) 15 Cal.5th 792, 804; *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1103.) In this context, the Court cannot conclude that Plaintiff's claim is necessarily insufficient as a matter of law, based on the evidence presented here.

The Motion is therefore **DENIED**.

The Evidentiary Objections filed at ROAs 176, 205 and 206, to the extent directed to any evidence material here (see *C.C.P. § 437c(q)*), are **OVERRULED**.

		Plaintiffs Objection filed as ROA 197 is also OVERRULED . <i>Counsel for Ford is to give notice.</i>
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